

LOKPAL AND LOKAYUKTAS

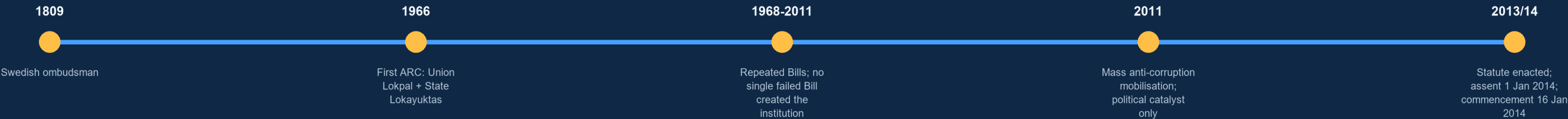
POLITY TOPIC 38 | CONTINUOUS AT-A-GLANCE MASTER

STATUTE -> JURISDICTION -> COMPLAINT -> INQUIRY -> INVESTIGATION -> COURT -> ACCOUNTABILITY

CORE ANSWER LINE: Broad statutory reach, bounded procedure, independent investigation, judicial outcome.

1

IDENTITY + EVOLUTION



ANSWER LINE Statutory corruption ombudsman; not constitutional, police or court.

TRAP / LIMIT Political movement explains urgency; the Act, rules and judgments supply law.

2

COMPOSITION + ELIGIBILITY

- Chairperson + not more than 8 Members
- 50% of Members are Judicial Members
- >=50% of Members from SC/ST/OBC/minorities/women

- Chair: CJI/SC Judge route or qualified eminent person
- Judicial Member: SC Judge or HC Chief Justice route
- Other Member: >=25 years listed expertise; minimum age 45

ANSWER LINE Professional and social criteria coexist and may overlap.

TRAP / LIMIT Percentages use Members as denominator; eight is a ceiling.

3

SELECTION + TENURE + REMOVAL

Search Committee: >=7 experts + diversity floor; panel not exclusive

Selection: PM | LS Speaker | LS LoP | CJI/nominee | eminent jurist

President appoints by warrant

Term: 5 years or age 70; ordinary reappointment barred

Misbehaviour: 100 MPs -> President -> Supreme Court inquiry -> removal

ANSWER LINE Common Cause (2017): a vacancy could not make the Act unworkable.

TRAP / LIMIT The judgment did not write a permanent largest-party substitute into section 4.

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4

JURISDICTION: PEOPLE + ENTITIES

HIGH OFFICE

PM, Union Ministers, MPs; serving or former

SERVICES

Groups A-D Union officials; category-specific routing

PUBLIC BODIES

Parliament-created, Central-controlled or Central-financed

OTHER ENTITIES

Government-financed with notified income condition

FOREIGN FUNDS

Specified officers where donation > Rs 10 lakh/year or higher notified

CONNECTED ACTORS

Abettor, bribe-giver, bribe-taker or conspirator under s.14(3)

ANSWER LINE Jurisdiction follows statutory office, offence, funding and consent conditions.

TRAP / LIMIT Lokpal does not investigate every private person.

5

PM FILTER + PARLIAMENTARY PRIVILEGE

- PM is covered
- Excluded: international relations; external/internal security; public order; atomic energy; space
- Full bench + $\geq 2/3$ approval + in camera
- Dismissed-inquiry records not published/made available

- MPs are covered
- Section 14(2) preserves Article 105(2) speech/vote protection
- Sita Soren (2024): bribery itself is not privileged
- Privilege survives; corrupt bargain remains prosecutable

ANSWER LINE High office is accountable through qualified, not absolute, jurisdiction.

TRAP / LIMIT Do not confuse protected legislative action with immunity for bribery.

6

COMPLAINT -> PRELIMINARY INQUIRY

Complaint Rules 2020: Form I + identity + affidavit + allegation + annexures

Registry: form, jurisdiction, pendency and seven-year limitation

Lokpal: preliminary inquiry OR direct investigation where prima facie basis exists

PI actor: Inquiry Wing / CVC / assigned agency

Comments + hearing -> ≥ 3 -Member bench decision

ANSWER LINE Preliminary inquiry tests a prima facie case; it neither proves guilt nor replaces investigation.

TRAP / LIMIT Defective, dismissed, unproved and false complaints are not synonyms.

7

INVESTIGATION -> PROSECUTION -> COURT

investigation.

TRAP / LIMIT

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7

INVESTIGATION -> PROSECUTION -> COURT

Investigation: CBI/DSPE or other agency; 6 months

Reasoned extension: <=6 months at a time

Report: jurisdictional court + copy to Lokpal

Lokpal bench: sanction/charge-sheet | closure | departmental action

Prosecution Wing/agency -> Special Court

ANSWER LINE

Sanction and charge-sheet enable adjudication; neither is conviction.

TRAP / LIMIT

Sections 20, 23 and 24 perform different jobs.

8

LOKPAL - CVC - CBI/DSPE FIREWALL

LOKPAL

Complaint routing; post-report decisions; referred-case supervision

CVC

Groups A/B preliminary report to Lokpal; C/D under CVC Act

CVO

Departmental vigilance and disciplinary coordination

CBI/DSPE

Criminal investigation and statutory police powers

PROSECUTION

Presents the case after lawful direction/sanction

SPECIAL COURT

Cognizance, trial, conviction/acquittal and sentence

ANSWER LINE

Section 25 protects referred investigations without creating universal CBI control.

TRAP / LIMIT

No direction may dictate investigation or disposal in a particular manner.

9

SEARCH + ATTACHMENT + CONFISCATION

s.26

Authorise entrusted agency to search/seize secreted relevant material

s.27

Specified civil-court powers during preliminary inquiry

s.29

Reasoned provisional attachment for <=90 days

s.30

Application within 30 days; Special Court confirms or refuses

s.31

Court-controlled confiscation; restoration/value + 5% if reversed

ANSWER LINE

Property control is preventive and judicially supervised.

TRAP / LIMIT

Lokpal cannot finally confiscate by administrative fiat.

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ASSETS + FALSE COMPLAINTS + ACCOUNTABILITY

● s.44 after 2016: assets/liabilities in prescribed form and manner

● s.13: specified expenses charged on Consolidated Fund

ASSETS + FALSE COMPLAINTS + ACCOUNTABILITY

- s.44 after 2016: assets/liabilities in prescribed form and manner
 - s.45: conditional rebuttable presumption
 - s.46: false and frivolous/vexatious complaint; good-faith shield
 - s.53: seven years from alleged offence
- s.13: specified expenses charged on Consolidated Fund
 - ss.40-43: budget, grants, accounts and CAG audit
 - s.48: annual report to President and Parliament
 - Reasons for non-acceptance of Lokpal advice accompany report

ANSWER LINE Independence is paired with audit, reporting, limitation and fair-process safeguards.

TRAP / LIMIT The original 2014 asset-return timetable is not the substituted section 44.

LOKAYUKTAS: FEDERAL VARIATION

- Section 63: each State establishes by State law if not already done
 - No uniform national composition, selection, tenure or power
 - State statutes decide CM/minister/official coverage and consequence
- Maharashtra 1971: historical early State inquiry/report model
 - Karnataka 1984: distinct Lokayukta/Upalokayukta investigation framework
 - Use examples only to show design variation, never as a national rule

ANSWER LINE Federal flexibility enables experimentation but creates uneven accountability.

TRAP / LIMIT Do not transplant the Union Lokpal model into every State.

UPSC SYNTHESIS + REFORM

- STRENGTH**
High-office reach; plural appointment; protected tenure
- PROCESS**
Inquiry, investigation, sanction and court stages remain distinct
- LIMIT**
Complaint dependence; vacancies; delay; external-agency reliance
- CAG / CIC**
CAG audits public accounts; CIC handles RTI disclosure and appeals; neither replaces corruption investigation or trial
- REFORM**
Timely appointments; stable staff; interoperable tracking; reasons
- VERDICT**
Capable coordinator, never an omnipotent super-agency

ANSWER LINE Strengthen capacity and transparency without sacrificing natural justice, federal choice or courts.

TRAP / LIMIT Never write that Lokpal automatically dismisses every official, controls all CBI work or overrides privilege generally.